

AI Act Risk Classification

The four risk categories of the EU AI Act (unacceptable, high, limited, minimal): criteria, examples and legal references (Article 5, Article 6, Annex III). Regulation (EU) 2024/1689. Version of 29 September 2026.

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1. The risk-based approach

The EU AI Act does not regulate all AI in the same way. It sorts AI systems by the level of risk they pose to health, safety and fundamental rights, and sets obligations accordingly. The Commission presents this as a pyramid of four levels. The legal text itself only defines the top three in operative provisions, and does not use the labels "limited risk" and "minimal risk". Those two labels are a convenient way to describe what is left below the regulated tiers.

Level	Legal basis	What the Act does	Application date
Unacceptable risk	Article 5	Prohibited. Cannot be placed on the market, put into service or used in the Union.	August 2025 (enforceable with penalties under Article 99)
High risk	Article 6, Annex I, Annex III, Chapter III	Permitted only if strict requirements are met (Articles 8 to 15), with provider and deployer obligations, conformity assessment and registration.	Annex III systems: August 2026. Annex I products: August 2027.
Limited risk (transparency risk)	Article 50	Permitted, with transparency duties: people must know they interact with AI, and synthetic content must be marked or labelled.	August 2026
Minimal risk	No binding obligations. Voluntary codes of conduct: Article 95	Permitted freely. Providers are encouraged to adopt voluntary codes of conduct.	Not applicable

Two clarifications matter for client advice. First, the tiers are not mutually exclusive: a system can be high-risk and also subject to Article 50, for example a high-risk emotion recognition system. Second, **general-purpose AI models** (large models such as language models) are regulated separately in Chapter V (Articles 51 to 56) according to their capabilities, not according to the four tiers. The AI system built on top of such a model is then classified in the usual way.

2. Unacceptable risk: prohibited practices (Article 5)

Article 5 lists AI practices considered a clear threat to people's safety, livelihoods and rights. They are banned. The prohibitions are enforceable with penalties from **August 2025**, when the penalty regime of Article 99 applies. The fines for breaching Article 5 are the highest in the Act (up to EUR 35 million or 7% of worldwide annual turnover, Article 99(3)). Article 113 provides that the prohibitions themselves apply from 2 February 2025.

2.1 The eight prohibitions in Article 5(1)

Article	Prohibited practice	Examples
5(1)(a)	AI systems deploying subliminal techniques beyond a person's consciousness, or purposefully manipulative or deceptive techniques , with the objective or effect of materially distorting behaviour and causing or likely to cause significant harm.	A voice assistant that nudges a user below awareness into a harmful financial decision.
5(1)(b)	AI systems that exploit vulnerabilities of a person or group due to age, disability or a specific social or economic situation, materially distorting behaviour and causing significant harm.	A toy that encourages a child to take dangerous actions; targeting people in financial distress with manipulative offers.
5(1)(c)	Social scoring : evaluation or classification of people over time based on social behaviour or personal characteristics, leading to detrimental or unjustified treatment in unrelated contexts or disproportionate to the behaviour.	A public or private system that lowers access to services based on unrelated social behaviour.
5(1)(d)	Predicting the risk of a person committing a criminal offence based solely on profiling or personality traits. Systems supporting a human assessment based on objective, verifiable facts are not covered.	Predictive policing tool that flags individuals purely from a profile.
5(1)(e)	Creating or expanding facial recognition databases through untargeted scraping of facial images from the internet or CCTV footage.	Scraping social media photos to build a face-search database.
5(1)(f)	Inferring emotions of a person in the workplace or in education institutions , except for medical or safety reasons.	Software that scores call-centre agents' emotions from their voice or webcam; monitoring students' emotions during lessons.
5(1)(g)	Biometric categorisation that individually categorises people based on biometric data to deduce or infer race, political opinions, trade union membership, religious or philosophical beliefs, sex life or sexual orientation. Lawful labelling or filtering of lawfully acquired biometric datasets in law enforcement is excepted.	A system inferring political opinions from face images.
5(1)(h)	Real-time remote biometric identification in publicly accessible spaces for law enforcement , except in three narrowly defined situations: targeted search for victims of abduction, trafficking or sexual exploitation and missing persons; prevention of a specific, substantial and imminent threat to life or a genuine terrorist threat; localisation or identification of suspects of serious offences listed in Annex II. Prior authorisation is needed in most cases (Article 5(3)).	Live facial recognition in a train station by police.

2.2 Practical points

- There is **no consent-based route**. Consent of the person concerned does not make a prohibited practice lawful.
- The ban applies to both providers and deployers, and a non-EU operator is caught if the system or its output reaches people in the EU.
- Several practices people assume are banned are not. **Credit scoring is high-risk, not prohibited** (Annex III, point 5(b)). Remote biometric identification by private actors is generally high-risk, not banned.
- The Commission publishes guidelines on prohibited practices, which help interpret borderline cases.

3. High risk (Article 6 and Annexes I and III)

High-risk systems are the core of the Act. They are allowed on the market but must meet strict requirements. There are two routes into the high-risk category.

3.1 Route 1: safety components of regulated products (Article 6(1) and Annex I)

An AI system is high-risk if **both** conditions are met: (a) it is intended to be used as a safety component of a product, or is itself a product, covered by the Union harmonisation legislation listed in **Annex I**; and (b) that product must undergo a third-party conformity assessment under that legislation before being placed on the market or put into service. Annex I covers, among others, machinery, toys, lifts, radio equipment, medical devices, in vitro diagnostic devices, civil aviation, motor vehicles and rail systems. The high-risk obligations for this route apply from **August 2027**.

3.2 Route 2: the use cases in Annex III (Article 6(2))

AI systems used in one of the areas listed in **Annex III** are also high-risk. Annex III has eight areas. The obligations for this route apply from **August 2026**.

Annex III point	Area	Listed use cases
1	Biometrics (where permitted by law)	Remote biometric identification systems (not mere verification of identity); biometric categorisation by sensitive or protected attributes; emotion recognition systems.
2	Critical infrastructure	AI used as safety components in managing and operating critical digital infrastructure, road traffic, and the supply of water, gas, heating and electricity.
3	Education and vocational training	Determining access or admission to institutions; evaluating learning outcomes and steering the learning process; assessing the appropriate level of education; monitoring and detecting prohibited behaviour of students during tests.
4	Employment, workers management and access to self-employment	Recruitment and selection (targeted job advertisements, analysing and filtering applications, evaluating candidates); decisions on terms of work, promotion or termination, task allocation based on behaviour or personal traits, and monitoring and evaluating performance and behaviour.
5	Access to essential private and public services and benefits	Eligibility of people for public assistance benefits and services; creditworthiness evaluation and credit scoring (except fraud detection); risk assessment and pricing for life and health insurance; evaluating and classifying emergency calls and dispatching emergency services, including triage of patients.
6	Law enforcement	Assessing the risk of a person becoming a victim of crime; polygraphs and similar tools; evaluating reliability of evidence; assessing the risk of offending or re-offending (not solely on profiling); profiling in the course of detection, investigation or prosecution.
7	Migration, asylum and border control	Polygraphs and similar tools; assessing risks posed by people entering or seeking to enter a Member State; assisting examination of asylum, visa and residence permit applications; detecting, recognising or identifying people (except travel document verification).
8	Administration of justice and democratic processes	AI used by or for judicial authorities to research and interpret facts and law and apply the law to facts, or in alternative dispute resolution; AI intended to influence the outcome of an election or referendum or the voting behaviour of people (excluding tools for administrative campaign organisation).

3.3 The Article 6(3) derogation: when an Annex III system is not high-risk

An Annex III system is **not** considered high-risk if it does not pose a significant risk of harm to health, safety or fundamental rights, including by not materially influencing the outcome of decision making. Article 6(3) gives four conditions, and one is enough: the system is intended (a) to perform a narrow procedural task; (b) to improve the result of a previously completed human activity; (c) to detect decision-making patterns or deviations from prior patterns, without replacing or influencing a completed human assessment without proper human review; or (d) to perform a preparatory task for an assessment relevant to an Annex III use case.

- **Profiling exception to the derogation:** an Annex III system that performs profiling of natural persons is always high-risk (Article 6(3), last subparagraph).
- **Documentation duty:** a provider that concludes its Annex III system is not high-risk must document this assessment before placing the system on the market (Article 6(4)). The system must still be registered in the EU database (Article 49(2)). Authorities can request the assessment.
- **Changing the list:** the Commission can amend Annex III by delegated act (Article 7).

3.4 What high-risk means for the provider and the deployer

High-risk systems must meet the requirements in Articles 8 to 15 (risk management, data governance, technical documentation, record keeping, transparency, human oversight, accuracy, robustness and cybersecurity). Providers also complete a conformity assessment, draw up an EU declaration of conformity, affix CE marking and register the system. Deployers have their own duties (Article 26). The full detail is in the document [AI_Act_High_Risk_Obligations](#).

4. Limited risk: transparency obligations (Article 50)

Some AI systems are not high-risk but create a risk of deception or manipulation. Article 50 requires transparency for these. The category covers four situations:

- **Chatbots and other systems interacting directly with people:** users must be informed they are interacting with an AI system, unless it is obvious (Article 50(1)).
- **Systems generating synthetic audio, image, video or text:** outputs must be marked in a machine-readable format and detectable as artificially generated (Article 50(2)).
- **Emotion recognition and biometric categorisation systems:** the people exposed must be informed (Article 50(3)).
- **Deepfakes and AI-generated text on matters of public interest:** deployers must disclose that the content is artificially generated or manipulated (Article 50(4)).

Article 50 has applied since 2 August 2026. The full rules and exceptions are in the document [AI_Act_Transparency_Requirements](#).

5. Minimal risk

Most AI systems in use today fall into this category: spam filters, AI in video games, inventory forecasting, product recommendation for non-sensitive uses, or an internal writing assistant. The Act imposes **no binding obligations** on them beyond the general AI literacy duty in Article 4. Article 95 encourages providers to draw up voluntary codes of conduct applying some high-risk requirements, such as environmental sustainability, accessibility or diversity of development teams.

6. Classification method for consultants

When a client asks "which category is our system?", work through the questions in this order. Stop at the first "yes".

Step	Question	If yes
1	Is the system an AI system under Article 3(1), and is it inside the scope of Article 2 (no military, research-only or personal-use exclusion)?	If no: the Act does not apply.
2	Does it fall under one of the practices in Article 5(1)?	Prohibited. The system must be stopped or redesigned.
3	Is it a safety component of, or itself, a product under Annex I that needs third-party conformity assessment (Article 6(1))?	High-risk (application date August 2027).
4	Is its intended purpose in one of the eight areas of Annex III (Article 6(2))?	High-risk unless the Article 6(3) derogation applies and the system does not profile people. Document the assessment (Article 6(4)).
5	Does it interact directly with people, generate synthetic content, recognise emotions or categorise people biometrically, or create deepfakes (Article 50)?	Transparency duties apply, in addition to any other tier.
6	None of the above.	Minimal risk. Only AI literacy (Article 4) applies. Voluntary codes (Article 95).

The **intended purpose** declared by the provider (Article 3(12)) is what drives classification for Annex III. A general-purpose tool that a client configures for CV screening becomes an Annex III point 4 system in that use, and the client may become a provider under Article 25.

7. Frequently asked questions

Is our customer-service chatbot high-risk?

Usually not. A customer-service chatbot is normally **limited risk**: Article 50(1) requires that users are told they interact with an AI system, unless that is obvious. It becomes high-risk only if its intended purpose falls into Annex III, for example if it decides eligibility for essential services or credit.

Is a CV-screening or candidate-ranking tool high-risk?

Yes. Recruitment and selection tools, including analysing and filtering applications and evaluating candidates, are listed in Annex III, point 4(a). The Article 6(3) derogation is unlikely to apply if the tool profiles candidates.

Is credit scoring prohibited?

No. Creditworthiness evaluation and credit scoring of natural persons are high-risk under Annex III, point 5(b). Fraud detection systems are excluded from that entry.

Is emotion recognition banned?

In workplaces and educational institutions, yes, except for medical or safety reasons (Article 5(1)(f)). In other contexts it is high-risk under Annex III, point 1(c), and also needs the Article 50(3) notice.

Can a system change category over time?

Yes. A change in intended purpose, a substantial modification, or an amendment of Annex III by the Commission (Article 7) can move a system into a stricter tier. The provider must keep its classification assessment up to date.

8. Sources

- Regulation (EU) 2024/1689, Articles 3, 5, 6, 7, 49, 50, 95 and Annexes I and III, EUR-Lex, CELEX 32024R1689.
- European Commission, guidelines on prohibited AI practices and AI Act published summaries, digital-strategy.ec.europa.eu.